Rohrman Automotive Group

Employee Handbook

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Section 1
Introduction

1.1 Welcome to Rohrman Automotive Group

Welcome to the Rohrman Automotive Group where we are Driving Relationships with Awesome Experiences!

1.2 Employee Handbook

This Employee Handbook ("Handbook") is designed to summarize certain personnel policies and benefits of Rohrman Automotive Group (the "Company"), of 3900 SOUTH ST, LAFAYETTE, Indiana 47905, and to acquaint employees with many of the rules concerning employment with the Company. This Handbook applies to all employees, and compliance with the Company's policies is a condition of employment. This Handbook supersedes all previous employment policies, written and oral, express and implied. The Company reserves the right to modify, rescind, delete, or add to the provisions of this Handbook from time to time in its sole and absolute discretion. This Employee Handbook is not a binding contract between the Company and its employees, nor is it intended to alter the at-will employment relationship between the Company and its employees. The Company reserves the right to interpret the policies in this Handbook and to deviate from them when, in its discretion, it determines it is appropriate.

1.3 Changes in Policy

Since our business is constantly changing, the Company expressly reserves the right to revise, modify, delete, or add to any and all policies, procedures, work rules, or benefits stated in this handbook or in any other document, except for the policy of at-will employment as described below. No oral statements or representations can in any way alter the provisions of this Handbook. Nothing in this employee handbook or in any other document, including benefit plan descriptions, creates or is intended to create a promise or representation of continued employment for any employee. Any changes to your at-will employment status, described below, must be in writing and must be signed by the Company.

If you are uncertain about any policy or procedure, please check with your manager or Human Resources.

1.4 Employment-At-Will

Employment with the Company is on an at-will basis, unless otherwise specified in a written employment agreement. You are free to resign at any time, for any reason, with or without notice. Similarly, the Company is free to conclude the employment relationship at any time for any lawful reason, with or without cause, and with or without notice.

Nothing in this Handbook will limit the right of either party to terminate an at-will employment. No section of this Handbook is meant to be construed, nor should be construed, as establishing

anything other than an employment-at-will relationship. This Handbook does not limit management's discretion to make personnel decisions such as reassignment, change of wages and benefits, demotion, etc. No person other than the CEO, President, or CFO has the authority to enter into an agreement for employment for any specified period of time or to make an agreement for employment other than at-will terms. Only the CEO, President, or CFO of the Company has the authority to make any such agreement, which is only binding if it is in writing and signed by the President of the Company.

Section 2
Employment Policies

2.1 Employee Classifications

The following terms are used to describe employees and their employment status:

Exempt Employees - Employees whose positions meet specific tests established by the Federal Labor Standards Act ("FLSA") and Indiana state law. In general, exempt employees are those engaged in executive, managerial, high-level administrative and professional jobs who are paid a fixed salary and perform certain duties. In addition, certain commissioned sales employees and highly paid computer professionals are exempt. Exempt employees are not subject to the minimum wage and overtime laws.

Nonexempt Employees - Employees whose positions do not meet specific tests established by the FLSA and Indiana state law. All employees who are covered by the federal or state minimum wage and overtime laws are considered nonexempt. Employees working in nonexempt jobs are entitled to be paid at least the minimum wage per hour and a premium for overtime.

Full-Time Employees - Employees who are not temporary employees, independent contractors, or independent consultants and who are regularly scheduled to work a schedule of 40 hours per work week.

Part-Time Employees - Employees who are not temporary employees, independent contractors, or independent consultants and who are regularly scheduled to work less than 40 hours per work week.

Temporary Employees - Employees who are hired as interim replacements to temporarily supplement the workforce or to assist in the completion of a specific project. Employment assignments in this category are of limited duration and the temporary employee can be let go before the end of the defined period. Short term assignments generally are periods of three (3) months or less, however, such assignments may be extended. All Temporary employees are at-will regardless of the anticipated duration of the assignment (see Employment-at-Will Policy). Temporary employees retain that status unless and until notified in writing of a change.

Independent Contractor or Consultant - These individuals are not employees of the Company and are self-employed. An independent contractor or consultant is engaged to perform a task according to his/her own methods and is subject to control and direction only as to the results to be accomplished. Independent contractors or consultants are not entitled to benefits.

Each employee will be advised of his or her status at the time of hire and any change in status. Regardless of the employee's status, the employee is employed at-will and the employment relationship can be terminated by the Company or the employee at any time, with or without cause and with or without notice.

2.2 Equal Employment Opportunity & Americans with Disabilities Act

It is the policy of the Company to provide equal employment opportunities to all employees and employment applicants without regard to unlawful considerations of race, religion, creed, color, national origin, sex, pregnancy, sexual orientation, gender identity, age, ancestry, physical or mental disability, genetic information, marital status, or any other classification protected by applicable local, state or federal laws. This policy prohibits unlawful discrimination based on the perception that anyone has any of those characteristics or is associated with a person who has or is perceived as having any of those characteristics. This policy applies to all aspects of employment, including, but not limited to, hiring, job assignment, working conditions, compensation, promotion, benefits, scheduling, training, discipline, and termination.

The Company expects all employees to support our equal employment opportunity policy, and to take all steps necessary to maintain a workplace free from unlawful discrimination and harassment and to accommodate others in line with this policy to the fullest extent required by law. For example, the Company will make reasonable accommodations for employees' observance of religious holidays and practices unless the accommodation would cause an undue hardship on the Company's operations. If you desire religious accommodation, you are required to make the request in writing to your manager as far in advance as possible. You are expected to strive to find co-workers who can assist in the accommodation (e.g., trade shifts) and cooperate with the Company in seeking and evaluating alternatives.

Moreover, in compliance with the Americans with Disabilities Act (ADA), the Company provides reasonable accommodations to qualified individuals with disabilities to the fullest extent required by law. The Company may require medical certification of both the disability and the need for accommodation. Keep in mind that the Company can only seek to accommodate the known physical or mental limitations of an otherwise qualified individual. Therefore, it is your responsibility to come forward if you are in need of accommodation. The Company will engage in an interactive process with the employee to identify possible accommodations, if any will help the applicant or employee perform the job.

2.3 Confidentiality

In the course of employment with the Company, employees may have access to "Confidential Information" regarding the Company, which may include its business strategy, future plans,

financial information, contracts, suppliers, customers, personnel information or other information that the Company considers proprietary and confidential. Maintaining the confidentiality of this information is vital to the Company's competitive position in the industry and, ultimately, to its ability to achieve financial success and stability. Employees must protect this information by safeguarding it when in use, using it only for the business of the Company and disclosing it only when authorized to do so and to those who have a legitimate business need to know about it. This duty of confidentiality applies whether the employee is on or off the Company's premises, and during and even after the end of the employee's employment with the Company. This duty of confidentiality also applies to communications transmitted by the Company's electronic communications. See also Internet, Email and Computer Use policy, herein.

As a condition of employment with the Company, all employees must sign a Non-Disclosure Agreement.

2.4 Employment of Minors

The FLSA's child labor provisions, which the Company strictly adheres to, are designed to protect the educational opportunities of youth and prohibit their employment in jobs that are detrimental to their health and safety. Generally speaking, the FLSA sets the minimum age for employment (14 years for non-agricultural jobs), restricts the hours youth under the age of 16 may work, and prohibits youth under the age of 18 from being employed in hazardous occupations. In addition, the FLSA establishes subminimum wage standards for certain employees who are less than 20 years of age, full-time students, student learners, apprentices, and workers with disabilities. Employers generally must have authorization from the U.S. Department of Labor's Wage and Hour Division (WHD) in order to pay sub-minimum wage rates.

2.5 Employment of Relatives

The Company recognizes that the employment of relatives in certain circumstances, such as when they will work in the same department, supervise or manage the other, or have access to confidential or sensitive information regarding the other, can cause problems related to supervision, safety, security or morale, or create conflicts of interest that materially and substantially disrupt the Company's operations. When the Company determines any of these problems will be present, it will decline to hire an individual to work in the same department as a relative. Relatives subject to this policy include father, mother, sister, brother, current spouse or domestic partner, child (natural, foster, or adopted), current mother-in- law, current father-in-law, grandparent, or grandchild.

If present employees become relatives during employment, the Company should be notified so that we may determine whether a problem involving supervision, safety, security or morale, or a conflict of interest that would materially and substantially disrupt the Company's operations exists. If the Company determines that such a problem exists, the Company will take appropriate steps to resolve the problem, which may include reassignment of one relative (if feasible) or asking for the resignation of one of the relatives.

2.6 Introductory Period

The first 90 days of employment are considered an introductory period for all newly hired employees. During this time, you will learn your new responsibilities, get acquainted with fellow employees, and determine whether you are happy with the position. Also, during this time, your manager will monitor your performance. Upon completion of the introductory period, your manager will review your performance. If the Company finds your performance satisfactory and decides to continue your employment, you will be advised of any improvements expected. This is also an opportunity for you to make suggestions to improve the Company's efficiency and operations. Completion of the introductory period does not entitle you to remain employed by the Company for any definite period of time, but instead allows both you and the Company to evaluate whether or not you are right for the position. Your status as an at-will employee does not change-the employment relationship may be terminated with or without cause and with or without advance notice, at any time by you or the Company.

2.7 Personnel Records and Employee References

The Company maintains a personnel file and payroll records for each employee as required by law. Personnel files and payroll records are the property of the Company and may not be removed from Company premises without written authorization. Because personnel files and payroll records are confidential, access to the records is restricted. Generally, only those who have a legitimate reason to review information in an employee's file are allowed to do so. Disclosure of personnel information to outside sources will be limited. However, the Company will cooperate with requests from authorized law enforcement or local, state, or federal agencies conducting official investigations and as otherwise legally required.

Employees may contact a Human Resources representative to request a time to review their payroll records and/or personnel file. With reasonable advance notice, an employee may review his or her own records in the Company's offices during regular business hours and in the presence of an individual appointed by the Company to maintain the records. No copies of documents in your file may be made, with the exception of documents that you have previously signed. You may add your comments to any disputed item in the file.

By policy, the Company will provide only the former or present employee's dates of employment and position(s) held with the Company. Compensation information may also be verified if written authorization is provided by the employee.

2.8 Privacy

The Company is respectful of employee privacy. All employee demographics and personal information will be shared only as required in the normal course of business. Healthcare enrollment information is kept in a separate folder from other human resources forms. Workers' Compensation information is not considered private healthcare information; however, this information will be released only on a need-to-know basis.

The Company does not make or receive any private healthcare information through the course of normal work. If any employee voluntarily shares private healthcare information with a member of management, this information will be kept confidential. If applicable, the Company will set up guidelines for employees and management to follow to ensure that company employees conform to the requirements of the Health Insurance Portability and Accountability Act (HIPAA).

2.9 Immigration Law Compliance

In compliance with the Immigration Reform and Control Act of 1986, each new employee, as a condition of employment, must complete the Employment Eligibility Verification Form I-9 on the date of hire and present documentation establishing identity and employment eligibility within three business days of date of hire. Former employees who are rehired must also complete an I-9 form if they have not completed an I-9 form with the Company within the past three years, or if their previous I-9 form is no longer retained or valid. You may raise questions or complaints about immigration law compliance without fear of reprisal.

2.10 Political Neutrality

Maintenance of individual freedom and our political institutions necessitates broad-scale participation by citizens concerning the selection, nomination and election of our public office holders. The Company will not discriminate against any employee because of their identification with and support of any lawful political activity. Company employees are entitled to their own personal political position. The Company will not discriminate against employees based on their lawful political activity engaged in outside of work. If you are engaging in political activity, however, you should always make it clear that your actions and opinions are your own and not necessarily those of the Company, and that you are not representing the Company.

2.11 Arbitration Agreement

1. **How the Agreement Applies.**

This Agreement applies to any dispute arising out of or related to the employment with Fort Wayne Subaru and its respective parents, subsidiaries, divisions, affiliates, predecessors, successors, assigns, officers, directors, owners, shareholders, and members (collectively referred to as "the Company"). The Employee and the Company are referred to collectively herein as the "Parties".

Employee and the Company understand and agree that unless it provides otherwise, this Agreement requires that all disputes by and between the Parties covered by this Agreement shall be resolved only by a neutral arbitrator thought final and binding arbitration and not by way of court or jury trail, including class and collective actions.

Employee and the Company understand that by entering into this Agreement they are expressly waiving any and all rights to the trail before a court and/or jury regarding any disputes and claims that are subject to arbitration under this Agreement.

This arbitration obligation extends to any and all disputes, claims or causes of action that may arise by and between the Parties, except as expressly precluded by applicable law, arising out of Employee's Employment with the Company.

This Agreement is governed by the Federal Arbitration Act, 9 U.S.C.} 1 et seq. and evidences a transaction involving commerce.

2. Exceptions to the Arbitration Agreement.

The Parties understand and agree that claims for workers' compensation benefits, unemployment insurance, or disability insurance are not covered by this Agreement and shall therefore be resolved in any appropriate forum, including the Illinois Workers' Compensation Commission, as required by the laws then in effect.

The Parties understand and agree that nothing in this Agreement should be interpreted as restricting or prohibiting Employee from filing a charge or complain with a federal, state or local administrative agency charged with investigation and/or prosecuting complaints under any applicable law or regulation including, but not limited to, the Equal Employment Opportunity Commission, the Indiana Human Rights Department, the United States or Indiana Departments of Labor, or the National Labor Relations Board. However, any dispute or claim that is not resolved through the federal, state, or local agency must be submitted to arbitration in accordance with this Agreement.

The Parties understand and agree that nothing contained in the Agreement shall be construed to prevent or excuse Employee from utilizing any internal procedures provided by for the Company for the resolution of complaints, and this Agreement is not intended to be a substitute for the utilization of such procedures.

Disputes, as to the enforceability, revocability or validity of the Agreement or any portion thereof are subject to the arbitration requirement of the Agreement.

3. Starting the Arbitration.

Any demand for arbitration by either Employee or the Company shall be filed within the statute of limitations that is applicable to the claim(s) upon which arbitration is sought or required.

The Party bringing the claim must demand arbitration in writing by filing a written notice ("Demand") of his/her/their intention to arbitrate at the American Arbitration Associations ("AAA") within the applicable statute of limitations. The AAA's Employment Arbitration Rules and Mediation Procedures shall apply.

The Party initiating arbitration shall deliver a copy of the Demand to the other Party by registered mail.

The arbitrator shall resolve all disputes regarding the timeliness or propriety of the demand for arbitration.

4. Location of the Arbitration.

The location of the arbitration proceeding shall take place at AAA's, Indiana office unless each Party to the arbitration agrees in writing otherwise.

5. The Arbitration Hearing.

This Agreement and the rights of the parties hereunder shall be governed by and construed in accordance with the laws of the State of Indiana irrespective of conflict of law principles.

The arbitration shall be construed pursuant to the rules AAA's Employment Arbitration Rules and Medication Procedures.

6. The Arbitration Award.

The arbitrator shall have the authority to award any relief authorized by law in connection with the asserted claims or disputes, but such remedies shall be limited to those that would be available to a

party in his or her individual capacity in a court of law for the claims presented to and decided by the arbitrator.

The arbitration shall issue a written decision or award that sets forth the essential findings of fact and conclusions of law on which the decision or award is based within thirty days of the hearing and/or post-hearing briefs, if any. Except as may be permitted or required by law, as determined by the arbitration, neither a party nor the arbitrator may disclose the existence, content, or results of any arbitration without the prior written consent of all parties.

7. <u>Paying for the Arbitration.</u>

Each Party will pay the fees for his, her or their own attorneys, subject to any remedies to which that Party may later be entitled under applicable law. However, in all cases where required by law, the Company will pay the arbitrator's and arbitration fees. If under applicable law the Company are not required to pay all the arbitrator's and/or arbitration fees, such fee(s) will be apportioned between the parties in accordance with said applicable law, and any disputes in that regard will be resolved by the arbitrator.

8. <u>Enforcement of the Agreement.</u>

This Agreement is the full and complete agreement relating to the formal resolution of disputes covered by this Agreement. In the event any portion of the Agreement is deemed unenforceable, the remainder of this Agreement will be enforceable.

Section 3
Hours of Work and Payroll Practices

3.1 Pay Periods and Paydays

Employees are paid on a weekly or semi-monthly basis. Weekly employees will be paid on Friday of each week and semi-monthly employees are paid on the 16th and 30th/31st of each month. All employees are paid by check or direct deposit on the above-mentioned payday. If the regular payday falls on a weekend or Company holiday, employees will be paid on the last business day before the holiday and/or weekend.

3.2 Overtime

Nonexempt employees will be paid in accordance with federal and Indiana state law.

In Indiana, with some exceptions, the standard work week for employees should not exceed 40 hours per week. Should the Company find it necessary to employ an employee in excess of this standard, overtime hours shall be compensated at the rate of one and one-half times the regular rate of pay.

All overtime work by non-exempt employees must be authorized in advance by their manager. Only hours actually worked will be used to calculate overtime pay.

3.3 Rest and Meal Periods

All rest and meal periods will be in accordance with Indiana state law.

To the extent Indiana state law does not require rest and meal breaks, nonexempt employees will be provided a 10-minute rest break for every four-hour period of work. This time is counted and paid as time worked. Nonexempt employees scheduled to work more than a five-hour period will be provided with a 30-minute unpaid meal period.

3.4 Timecards

All employees are required to keep an accurate and complete record of their attendance and hours worked. Timecards are official business records and may not be altered without the employee's supervisor's approval and may not be falsified in any way.

3.5 Payroll Deductions

Various payroll deductions are made each payday to comply with federal and state laws pertaining to taxes and insurance. Deductions will be made for the following: Federal and State Income Tax Withholding, Social Security, Medicare, State Disability Insurance & Family Temporary Disability Insurance, and other items designated by you or required by law (including a valid court order). You can adjust your federal and state income tax withholding by completing the proper federal or state form and submitting it to Accounting or Human Resources. At the start of each calendar year, you will be supplied with your Wage and Tax Statement (W-2) form for the prior year. This statement summarizes your income and deductions for the year.

3.6 Wage Garnishment

A garnishment is a court order requiring an employer to remit part of an employee's wages to a third party to satisfy a just debt. Once the Company receives the legal papers ordering a garnishment, we are required by law to continue making deductions from your check until we have withheld the full amount or until we receive legal papers from the court to stop the garnishment. Even if you have already paid the debt, we still need the legal papers to stop the garnishment.

3.7 Direct Deposit

All employees are encouraged, but not required, to use direct deposit and have their paychecks deposited into a bank account of an accredited participating bank or credit union.

Section 4
Standards of Conduct and Employee Performance

4.1 Anti- Harassment and Discrimination

Diversity & Inclusion Policy

The Company is dedicated to creating and maintaining an atmosphere of diversity and inclusion for all.

Company values are important, and are only made better by gathering the experiences, knowledge, and perspectives of people from all walks of life. We celebrate differences in age, race, ethnicity, national origin, religion, physical and mental ability, sexual orientation, gender identity or expression, family and marital status, and all the various backgrounds that help shape us all.

The Company's commitment to diversity applies to hiring practices, promotions, pay and benefits, terminations, training, teambuilding, and more. Prospective employees and current employees alike are expected to treat each other, and be treated, with respect and dignity. We seek to foster an environment that promotes:

- A healthy, collaborative, and courteous atmosphere.
- Engagement from all employees that allows for more varied insights.
- Adjustability, where appropriate, to allow for an individual's personal needs.
- Initiatives from the Company and the employees that encourage growth in the community.

The Company is committed to providing a work environment free of sexual or any form of unlawful harassment or discrimination. Harassment or unlawful discrimination against individuals on the basis of race, religion, creed, color, national origin, sex, pregnancy, sexual orientation, gender identity or expression, age, ancestry, physical or mental disability, genetic information, marital status or any other classification protected by local, state or federal laws is illegal and prohibited by Company policy. Such conduct by or towards any employee, contract worker, customer, vendor or anyone else who does business with the Company will not be tolerated. Any employee or contract worker who violates this policy will be subject to disciplinary action, up to and including termination of his or her employment or engagement. To the extent a customer, vendor or other person with whom the Company does business engages in unlawful harassment or discrimination, the Company will take appropriate corrective action.

Prohibited Conduct:

Prohibited harassment or discrimination includes any verbal, physical or visual conduct based on sex, race, age, national origin, disability or any other legally protected basis if:

a. submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment or engagement;

b. submission to or rejection of such conduct by an individual is used as a basis for decisions concerning that individual's employment or engagement; or

c. it creates a hostile or offensive work environment.

Prohibited harassment includes (but is not limited to) unwelcome sexual advances, requests for sexual favors and lewd, vulgar or obscene remarks, jokes, posters or cartoons, and any

unwelcome touching, pinching or other physical contact. Other forms of unlawful harassment or discrimination may include racial epithets, slurs and derogatory remarks, stereotypes, jokes, posters or cartoons based on race, national origin, age, disability, marital status or other legally protected categories. Prohibited harassment might also be transmitted using the Company's electronic communications system, or through other on-line conduct.

Complaint Procedure:

Employees or contract workers who feel that they have been harassed or discriminated against, or who witness any harassment or discrimination by an employee, contract worker, customer, vendor or anyone else who does business with the Company, should immediately report such conduct to their supervisor or any other member of management.

Do not allow an inappropriate situation to continue by not reporting it, regardless of who is creating the situation. No employee, contract worker, customer, vendor or other person who does business with this organization is exempt from the prohibitions in this policy. In response to every complaint, the Company will conduct an investigation which may involve interviewing witnesses if warranted and, if improper conduct is found, take appropriate corrective action.

To the extent that an employee or contract worker is not satisfied with the Company's handling of a harassment or discrimination complaint, he or she may also contact the appropriate state or federal enforcement agency for legal relief.

4.2 Attendance

Punctuality and regular attendance are essential to the successful operation of the Company's business. If an employee is unable to report to work (or to report to work on time) for any reason, the employee must notify his or her supervisor before his or her starting time. If an employee desires to leave work for any reason during the workday, the employee must obtain the approval of his or her supervisor prior to leaving. In the event that the employee fails to call his or her supervisor or report for work for 3 consecutive workdays, the employee will be deemed to have voluntarily resigned from his or her employment with the Company and will be removed from the payroll. Excessive absenteeism or tardiness may subject the employee to disciplinary action, up to and including termination.

4.3 Discipline and Standards of Conduct

As an at-will employer, the Company may impose discipline whenever it determines it is necessary or appropriate. Discipline may take various forms, including verbal counseling, written warnings, suspension, demotion, transfer, reassignment or termination. The discipline imposed will depend on the circumstances of each case; therefore, discipline will not necessarily be imposed in any particular sequence. Moreover, at any time the Company determines it is appropriate, an employee may be terminated immediately.

Every organization must have certain standards of conduct to guide the behavior of employees. Although there is no possible way to identify every rule of conduct, the following is an

illustrative list (not intended to be comprehensive or to limit the Company's right to impose discipline for any other conduct it deems inappropriate). Keep in mind that these standards of conduct apply to all employees whenever they are on Company property and/or conducting Company business (on or off Company property). Engaging in any conduct the Company deems inappropriate may result in disciplinary action, up to and including termination.

a. Dishonesty;

b. Falsification of Company records;

c. Unauthorized use or possession of property that belongs to the Company, a coworker, or of the public;

d. Possession or control of illegal drugs, weapons, explosives, or other dangerous or unauthorized materials;

e. Fighting, engaging in threats of violence or violence, use of vulgar or abusive language, horseplay, practical jokes or other disorderly conduct that may endanger others or damage property;

f. Insubordination, failure to perform assigned duties or failure to comply with the Company's health, safety or other rules;

g. Unauthorized or careless use of the Company's materials, equipment or property;

h. Unauthorized and/or excessive absenteeism or tardiness;

i. Lack of teamwork, poor communication, unsatisfactory performance, unprofessional conduct, or conduct improper for the workplace;

j. Sexual or other illegal harassment or discrimination;

k. Unauthorized use or disclosure of the Company's confidential information;

l. Violation of any Company policy.

4.4 Dress Code

At the Rohrman Automotive Group, we believe in the significance of a positive customer first impression. To maintain a professional atmosphere and enhance our brand image, we have established the following dress code and name tag policy:

Dress Code:

All employees are required to adhere to our dress code while on duty. This includes the following guidelines:

- Business professional: Wear a well-fitted suit, including a formal collared shirt, tie, slacks or skirt, and closed-toe dress shoes. Opt for neutral, conservative colors such as black, navy, or gray.
- Business casual: In some dealerships, a business casual dress code may be appropriate. This can include slacks, or a skirt paired with a collared shirt, blouse, or sweater. Closed-toe shoes, such as loafers or low heels, are still recommended.
- Grooming: Maintain a clean and well-groomed appearance. Make sure your hair is neatly styled, and facial hair should be tidy and well-groomed. Avoid excessive jewelry or accessories that may be distracting to customers.
- Personal branding: While maintaining a professional appearance, it is also important to consider your personal brand and align it with the dealership's image. You may want to incorporate accessories that reflect your style while still adhering to the dress code guidelines.

What are Slacks:

- Material: Slacks are typically made of a finer material such as wool, polyester, or a blend, which gives them a more formal and structured appearance. Casual trousers, on the other hand, can be made from a variety of materials including cotton, linen, twill, or corduroy, which provide a more relaxed and comfortable feel.
- Fit and cut: Slacks often have a more tailored and slightly looser fit, with a straight or slightly tapered leg. They may have pleats or creases down the front for a polished look. Casual trousers, on the other hand, can have a looser or more relaxed fit, with straight or slightly wider legs. They are typically cut without pleats or creases for a more laid-back look.
- Styling: Slacks are designed to be more formal and versatile, suitable for business or formal occasions. They are often paired with dress shirts, blazers, and dress shoes. Casual trousers, on the other hand, are more relaxed and are often worn in informal settings. They can be paired with casual shirts, t-shirts, sweaters, and more casual footwear like loafers or sneakers.
- Occasions: Slacks are typically worn for formal or professional settings such as business meetings, job interviews, or other formal events. Casual trousers are more appropriate for everyday activities, casual social events, or casual workplaces where a more relaxed dress code is accepted.

Polos: Different Level of Professionalism:

- Casual polos: These are typically made from comfortable and lightweight materials like cotton or blends. They often feature a relaxed fit, short sleeves, and may have a small logo or no logo at all. They are versatile and can be worn for various casual occasions.
- Business casual polos: These polos are slightly dressier than casual ones and are suitable for business or smart-casual settings. They may have finer details like a slightly more

tailored fit, a button-down collar, and a minimalistic design. They are often made from higher-quality materials such as piqué cotton or merino wool.

- Luxury polos: Luxury polos are typically crafted from high-end fabrics like silk or cashmere, giving them a luxurious feel. They may have additional features such as mother-of-pearl buttons, intricate stitching, or unique patterns. Luxury polos are often associated with upscale brands and can be worn for formal or special occasions.
- Performance polos: These polos are designed for athletic activities and feature moisture-wicking and breathable fabrics. They are often made from synthetic materials like polyester or blends, and they may have features like UV protection or odor control. Performance polos are popular for golfing, tennis, or other sports.

Acceptable Footwear:

- Dress loafers: Loafers made from leather or suede can be a great choice. They provide a refined touch while offering a comfortable and slip-on style. Opt for classic colors such as black, brown, or navy to match your slacks and polo.
- Chukka boots: Chukka boots are ankle-length boots with lace-up closures. They add a touch of sophistication to a casual outfit. Opt for leather or suede options in versatile colors like tan, brown, or black.
- Monk straps: Monk strap shoes feature a strap or straps instead of laces, adding a distinctive and refined element to your look. They can be either single or double straps. Choose shades of brown or black to match your slacks and polo.
- Heels: Heals are a classic and versatile footwear choice that can elevate the overall appearance of an outfit. Heel height should be moderate, typically ranging from 1 to 3 inches. Avoid excessively high heels for safety and comfort reasons. Opt for closed-toe heels in neutral colors.

Unacceptable Attire:

- Jeans: Regardless of color or style.
- Denim Shirts: shirts made of denim fabric.
- Shorts: Shorts, regardless of length.
- Leggings: Leggings, jeggings, or any tight-fitting stretch pants.
- Exposed Shoulders (Tank Tops)
- Sweatshirts: sweatshirts, hoodies, or similar casual outerwear.
- T-Shirts: T-shirts regardless of design or message.
- Athletic Wear: Clothing designed for athletic or sports activities.
- Low Cut or See-Through Shirts: Shirts that are low-cut or see-through.
- Messages of Clothes: Clothing with messages, slogans, or graphics.
- Spandex or Tight-Knitted Shirts
- Mini Skirts: mini skirts that are shorter than 4 inches above the knee.

- Ripped, Frayed, Stained Clothing
- Flip Flops: Flip Flops, thong sandals, or similar casual footwear.
-

Name Tags: Transparency/Personable

Wearing a name tag is mandatory for all customer facing employees during working hours. This not only adds a personal touch to customer interactions but also helps in fostering a sense of transparency and approachability.

Creating a cohesive and professional appearance among our team members not only reflects positively on the company but also contributes to a welcoming and trustworthy environment for our customers. By embodying a business professional image, we aim to strengthen our brand identity and ensure that every customer has a memorable and positive experience.

Your commitment to our dress code and name tag policy plays a crucial role in shaping the positive impression our customers have of the Rohrman Automotive Group. If you have any questions or require clarification, please feel free to reach out to the HR department.

4.5 Safety

The Company is committed to providing a safe workplace. Accordingly, the Company emphasizes "safety first." It is the employee's responsibility to take steps to promote safety in the workplace and work in a safe manner. By remaining safety conscious, employees can protect themselves and their coworkers. Employees are expected to promptly report all unsafe working conditions, accidents and injuries, regardless of how minor so that any potential hazards can be corrected.

4.6 Substance and Abuse

The Company is committed to providing its employees with a safe and productive work environment. In keeping with this commitment, it maintains a strict policy against the use of alcohol and the unlawful use of drugs in the workplace. Consequently, no employee may consume or possess alcohol, or use, possess, sell, purchase or transfer illegal drugs at any time while on the Company's premises or while using the Company vehicles or equipment, or at any location during work time.

No employee may report to work with illegal drugs (or their metabolites) or alcohol in his or her bodily system. The only exception to this rule is that employees may engage in moderate consumption of alcohol that may be served and/or consumed as part of an authorized Company social or business event. "Illegal drug" means any drug that is not legally obtainable or that is legally obtainable but has not been legally obtained. It includes prescription drugs not being used for prescribed purposes or by the person to whom it is prescribed or in prescribed amounts. It also includes any substance a person holds out to another as an illegal drug.

Any violation of this policy will result in disciplinary action, up to and including termination.

Any employee who feels he or she has developed an addiction to, dependence upon, or problem with alcohol or drugs, legal or illegal, is strongly encouraged to seek assistance before a violation of this policy occurs. Any employee who requests time off to participate in a rehabilitation program will be reasonably accommodated. However, employees may not avoid disciplinary action, up to and including termination, by entering a rehabilitation program after a violation of this policy is suspected or discovered.

4.7 Workplace Searches

All offices, desks, file drawers, cabinets, lockers, Company vehicles, and other Company equipment (including but not limited to computers, e-mail and voice mail) and facilities or any area on Company premises are the property of the Company ("Company Property") and are intended for business use. Employees should have no expectation of privacy with respect to Company property and/or items stored within Company Property or on Company premises. Inspection may be conducted at any time, without notice, at the discretion of the Company.

In addition, when the Company deems appropriate, employees may be required to submit to searches of their personal vehicles, parcels, purses, handbags, backpacks, briefcases, lunch boxes or any other possessions or articles brought on to the Company's premises.

Persons entering the premises who refuse to cooperate in an inspection conducted pursuant to this policy may not be permitted to enter the premises. All employees must cooperate in an inspection; failure to do so is insubordination and will result in disciplinary action, up to and including termination.

4.8 Internet, Email and Computer Use Policy

The Company uses various forms of electronic communication including, but not limited to: computers, email, telephones, voicemail, instant message, text message, Internet, cell phones and smart phones (hereafter referred to as "electronic communications"). Electronic communications, including all software, databases, hardware, and digital files, remain the sole property of the Company and are to be used only for Company business and not for personal use.

The following rules apply to all forms of electronic communications and media that are: (1) accessed on or from Company premises; (2) accessed using the Company computer or telecommunications equipment, or via Company-paid access methods; and/or (3) used in a manner which identifies the Company. The following list is not exhaustive, and the Company may implement additional rules from time to time.

a. Electronic communication and media may not be used in any manner that would be discriminatory, harassing, or obscene, or for any other purpose that is illegal, against Company policy, or not in the best interest of the Company. Employees who misuse electronic communications and engage in defamation, copyright or trademark infringement, misappropriation of trade secrets, discrimination, harassment, or related actions will be subject to discipline, up to and including termination. Employees may not install personal software on Company computer systems.

b. Employee's own electronic media may only be used during breaks. All other company policies, including the Company's no tolerance for discrimination, harassment, or retaliation in the workplace apply.

c. All electronic information created by any employee on Company premises or transmitted to Company property using any means of electronic communication is the property of the Company and remains the property of the Company. You should not assume that any electronic communications are private or confidential and should transmit personal sensitive information in other ways. Personal passwords may be used for purposes of security, but the use of a personal password does not affect the Company's ownership of the electronic information. The Company will override all personal passwords if necessary for any reason.

d. The Company reserves the right to access and review electronic files, messages, internet use, blogs, "tweets", instant messages, text messages, email, voice mail, and other digital archives, and to monitor the use of electronic communications as necessary to ensure that no misuse or violation of Company policy or any law occurs. All such information may be used and/or disclosed to others, in accordance with business needs and the law. The Company reserves the right to keep a record of all passwords and codes used and/or may be able to override any such password system

e. Employees are not permitted to access the electronic communications of other employees or third parties unless directed to do so by Company management. No employee may install or use anonymous e-mail transmission programs or encryption of e-mail communications.

f. Employees who use devices on which information may be received and/or stored, including but not limited to cell phones, cordless phones, portable computers, fax machines, and voice mail communications are required to use these methods in strict compliance with the Confidentiality section of this Handbook. These communications tools should not be used for communicating confidential or sensitive information or any trade secrets.

g. Access to the Internet, websites, and other types of Company-paid computer access are to be used for Company-related business only. Any information about Rohrman Automotive Group, its products or services, or other types of information that will appear in the electronic media about the Company must be approved before the information is placed on any electronic information resource that is accessible to others.

4.9 Social Media Policy

Rohrman Automotive Group is committed to utilizing social media to enhance its profile and reputation, to listen and respond to customer opinions and feedback, and to drive revenue, loyalty and advocacy. We encourage employees to support our activities through their personal social networking channels while adhering to the guidelines outlined in this section.

For the purpose of this section, social media and networking refers to the use of web-based and mobile applications for social interaction and the exchange of user-generated content. Social

media channels can include, but are not limited to: Facebook, Twitter, LinkedIn, YouTube, blogs, review sites, forums, online communities and any similar online platforms.

Employees are expected to conduct themselves in a professional manner and to respect the views and opinions of others. The Company and its employees are committed to conducting ourselves in accordance with best industry practices in social networking, to being responsible citizens and community members, to listening and responding to feedback, and to communicating in a courteous and professional manner. Behavior and content that may be deemed disrespectful, dishonest, offensive, harassing or damaging to the company's interests or reputation are not permitted. The use of social media channels on company time for personal purposes is not allowed.

Any social media contacts, including "followers" or "friends," that are acquired through accounts (including but not limited to email addresses, blogs, Twitter, Facebook, YouTube, LinkedIn, or other social media networks) created on behalf of the Company will be the property of the Company.

Employees must not disclose private or confidential information about the Company, its employees, clients, suppliers or customers on social networks. Employees must respect trademarks, copyrights, intellectual property and proprietary information. No third-party content should be published without prior permission from the owner.

The Company maintains the right to monitor company-related employee activity in social networks. Violation of policy guidelines is grounds for discipline, up to and including termination.

4.10 Cell Phone Policy

The use of personal cell phones at work is discouraged because it can interfere with work and be disruptive to others. Therefore, employees who bring personal cell phones to work are required to keep the ringer shut off or placed on vibrate mode when they are in the office, and to keep cell phone use confined to breaks and meal periods. Conversations should be had away from areas where other employees are working. When cell phone use interferes with the satisfactory performance of an employee's duties or disturbs others, the privilege of using a personal cell phone at work may be taken away and other disciplinary action, up to and including termination, may be imposed.

The Company may provide cell phone allowances to employees in certain positions in an effort to improve efficiency and effectiveness. When cell phones are used for Company business, employees must comply with all Company policies governing conduct, including our policies prohibiting discrimination, harassment, and violence in the workplace. When using the cell phone in a public place, please remember to maintain the confidentiality of any private or confidential business information. As a courtesy to others, please shut cell phones off or place on vibrate mode during meetings.

4.11 Remote/Offsite Computer Access – Intellectual Data

The purpose of this policy is to define rules and requirements for connecting to The Rohrman Automotive Dealerships VPN network from a remote host. The rules and requirements are designed to minimize the potential exposure to the Rohrman Automotive Dealerships from damages which may result from unauthorized use of the Rohrman Automotive Dealerships resources. Damages include the loss of sensitive or company confidential data, intellectual property, damage to public image, damage to critical the Rohrman Automotive Dealerships internal systems, and fines or other financial liabilities incurred as a result of those losses.

This policy applies to all Rohrman Automotive Dealerships employees, contractors, vendors, and agents with the Rohrman Automotive Dealerships company owned computer or workstation used to connect to the Rohrman Automotive Dealerships network. This policy applies to remote access connections used to do work on behalf of the Rohrman Automotive Dealerships, including reading or sending email, viewing intranet web resources. This policy covers any and all technical implementations of remote access used to connect to The Rohrman Automotive Dealerships networks.

Policy:

It is the responsibility of the Rohrman Automotive Dealerships employees, contractors, vendors, or agents with remote access privileges to the Rohrman Automotive Dealership's corporate network to ensure that their remote access connection is given the same consideration as the users on site connection to the Rohrman Automotive Dealerships.

General access to the internet form recreational use through the Rohrman Automotive Dealerships network is strictly limited to the Rohrman Automotive Dealerships employees, contractors, vendors, and agents (hereafter referred as "Authorized Users"). When accessing the Rohrman Automotive Dealerships network form a personal computer, Authorized Users are responsible for preventing access to any Rohrman Automotive Dealerships computer resources or data by non-Authorized Users. Performance of illegal activities through the Rohrman Automotive Dealerships network by any user (Authorized or otherwise) is prohibited. The Authorized User bears the responsibility for and consequences of misuse of the Authorized User's access.

Requirements:

1. Secure Remote access must be strictly controlled by encryption (i.e., Virtual Private Networks (VPNs) and strong pass-phrases.
2. Authorized Users shall protect their login and password, even from family members.
3. While using a Rohrman Automotive Dealerships remote access to their network, Authorized Users shall ensure the remote host is not connected to any other network at the same time, with the exception of personal networks that are under their complete control or under the complete control of an Authorized User.

4. All hosts that are connected to the Rohrman Automotive Dealerships internal networks via remote access must use the most up to date anti-virus software. Third party Connections must comply with requirements as stated in the Third-Party Agreement.

Non-Compliance:

An Employee found to have violated this policy may be subject to legal and disciplinary actions, up to and including termination of employment.

4.12 Biometric Usage Data Policy

It is The Rohrman Automotive Group's policy to protect, use and store biometric data in accordance with the applicable laws including, but not limited to, the Illinois Biometric Information Privacy Act.

In those states that require consent of the individual to use or store biometric data, biometric data will not be collected or otherwise obtained by The Rohrman Automotive Group without prior written consent of the individual. When consent is required, The Rohrman Automotive Group will inform the individual of the reason for the collection of the biometric, the length of time the data will be stored, and any other information required under applicable law. In Illinois, The Rohrman Automotive Group will not further disclose the biometric data unless consent is obtained from the individual, disclosure is necessary to complete a financial transaction requested or authorized by the individual, disclosure is required by law or disclosure is required by subpoena.

Regardless in which state the employee is working, The Rohrman Automotive Group will not sell, lease, trade or otherwise profit from an individual's biometric data.

Biometric data will be stored, transmitted, and protected using a reasonable standard of care within the Rohrman Automotive Groups Dealerships and in no less than the same manner that The Rohrman Automotive Group uses to store, transmit and protect other confidential information of The Rohrman Automotive Group.

The Rohrman Automotive Group will destroy biometric data when the initial purpose for obtaining or collecting such data is no longer needed.

The Rohrman Automotive Group reserves the right to amend this Biometric Information Security Policy at any time without notice.

Procedures:

For Indiana Employees:

a) Access to Secure Areas
b) In certain Dealerships, biometric readers are utilized to access the "Key Tracking Machines". The Bob Rohrman Auto Group collects, stores, and uses an employee's fingerprint scan for the employee to access such "Key Tracking Machines".
c) The Sales Department Manager will have the employee enter or scan his or her biometric data in the biometric reader.
d) Upon notice from the HR Department of an employee's termination, the Sales

Department Manager will permanently destroy the biometric data when the employee no longer needs access to the “Key Tracking Machine” or the employee no longer works for The Bob Rohrman Auto Group.

e) Access to the Timekeeping System
f) In certain office locations, an employee uses his or her biometric data to access the timekeeping system to record his or her work time. Human Resources or the Payroll Department will have the employees scan their fingerprint in the timekeeping system, which converts the fingerprint to a specific numbers pattern. The numbers pattern is stored in the time keeping system.
g) Human Resources or the Payroll Department will permanently destroy the biometric data when the employee no longer needs access to the timekeeping system, or the employee no longer works for The Rohrman Auto Group.

Section 5
Employee Benefits and Services

5.1 General

Aside from those benefits required by state and federal regulations, Rohrman Automotive Group also offers additional benefits for its full-time employees. From time to time, benefits may be added or deleted from the benefits package. The Company reserves the right to make such changes.

This Handbook does not contain the complete terms and/or conditions of any of the Company's current benefit plans. It is intended only to provide general explanations. For information regarding employee benefits and services, employees should contact Human Resources.

5.2 Group Health Insurance

Rohrman Automotive Group offers a group health plan for eligible employees. The Company's group health insurance plan is offered through Blue Cross Blue Shield. For more information, refer to the Company's benefits booklet for complete details and benefits.

5.3 Group Life Insurance

Rohrman Automotive Group offers a group life insurance plan for eligible employees, including accidental death and dismemberment coverage. The Company's group life insurance plan is offered through Unum. For more information, refer to the Company's benefits booklet for complete details and benefits.

5.4 401(k) Plan

Rohrman Automotive Group's 401(k) Plan is a convenient payroll deductible method to help supplement employees' retirement benefits and provide a long-term vehicle to accumulate

savings. For information regarding employee benefits and services, employees should contact Human Resources.

5.5 COBRA

Under the provisions of the Consolidated Omnibus Budget Reconciliation Act (COBRA) of 1986, if you are covered under the Company's group health insurance plan(s) you are entitled to continue your coverage in the event that your employment with the Company ends. Under COBRA, the Company must offer each qualified beneficiary (the employee and any covered dependents) who would otherwise lose coverage under the plan as a result of a qualifying event an opportunity to continue their insurance coverage. A qualifying event is defined as termination of employment, a reduction in the number of hours of employment, death of covered employee, divorce or legal separation, a dependent child ceases to be dependent, eligibility of the covered employee for Medicare, or an employer's bankruptcy.

5.6 Workers' Compensation

All states have Workers' Compensation laws whose purpose is to promote the general welfare of people by providing compensation for accidental injuries or death suffered in the course of employment. These laws are designed to provide protection to workers suffering occupational disabilities through accidents arising out of, and in the course of employment. Rohrman Automotive Group carries Workers' Compensation Insurance for all employees and pays the entire cost of the insurance program. An employee who suffers an injury or illness in connection with the job is usually eligible to receive payment through the insurance company for lost wages. In addition to disability payments, necessary hospital, medical and surgical expenses are covered under Workers' Compensation, with payments being made directly to the hospital or physician. Workers' Compensation benefits to injured workers also include assistance to help qualified injured employees return to suitable employment.

5.7 Social Security Benefits (FICA)

During your employment, you and the Company both contribute funds to the Federal government to support the Social Security Program. This program is intended to provide you with retirement benefit payments and medical coverage once you reach retirement age.

5.8 Unemployment Insurance

The company pays a state and federal tax to provide employees with unemployment insurance coverage in the event they become unemployed through no fault of their own or due to circumstances described by law. This insurance is administered by applicable state agencies, who determine eligibility for benefits, the amount of benefits (if any), and duration of benefits.

Section 6
Employee Leaves of Absence and Time Off

6.1 General

While regular attendance is crucial to maintain business operations, the Company recognizes that, for a variety of reasons, employees may need time off from work. The Company has available a few types of leaves of absence. Some are governed by law and others are discretionary. For all planned leaves, we kindly request employees to submit their request at least 3 days in advance. This proactive approach allows us to better manage workload distribution and ensures that necessary arrangements can be made to maintain operational efficiency. In case of emergencies or unforeseen circumstances, we understand that advance notice may not always be possible. In such, we urge employees to submit their leave requests as soon as they become aware of the need for leave. All leaves must have the approval of Company management. If, during a leave, an employee accepts another job, engages in other employment or consulting outside of the Company, or applies for unemployment insurance benefits, the employee may be considered to have voluntarily resigned from employment with the Company.

All requests for a leave of absence will be considered in light of their effect on the Company and its work requirements, as determined by Company management, which reserves the right to approve or deny such requests in its sole discretion, unless otherwise required by law. For disability-related leave requests, the Company will engage in an interactive process with the employee to determine if a leave is the most appropriate accommodation. The employee must provide a certification from his or her health care provider to the Company to support a leave for medical reasons. Failure to provide the required certification to the Company in a timely manner will result in delay or denial of leave. If an employee requires an extension of leave, the employee must request such extension and have it approved before the expiration of the currently approved leave.

While the Company will make a reasonable effort to return the employee to his or her former position or a comparable position following an approved leave of absence, there is no guarantee that the employee will be reinstated to his or her position, or any position, except as required by law.

6.2 Paid Time Off Days

Associates will become eligible for Paid Time Off (“PTO”) 90 days after their ninety-day (90-day) probation period.
Eligible employees are entitled to six paid time off ("PTO") days per year. PTO days’ pay for regular full-time employees will be calculated based on the employee's base pay rate times the number of hours the employee would otherwise have worked on that day. Regular part-time employees will be paid on a pro-rata basis. When employees eligible for paid time off do not take the full amount of time off, they could have taken in a year, that amount will be forfeited at their anniversary date. Upon termination, employees will be paid all unused time off as wages.

6.3 Vacations

Associates who have completed the following lengths of service with the Company will become eligible for paid vacations at follows:

- One-week paid vacation after one year of continuous full-time employment.

- Two weeks paid vacation after two years of continuous full-time employment.
- Three weeks paid vacation after ten years of continuous full-time employment.

Vacations shall be paid for the by the Company on the following basis:

- Hourly Associates: Will be paid at their regular rate of pay on the basis of their regularly scheduled hours of work.
- Sales Associates: Will be paid a fixed weekly amount. The rate that is currently in effect is available from your General Manager and/or HR Director.
- Salaried Associates: Will receive their regular salary.
- Part-time Associates: May request similar time off without pay.

In the event of a break in an associate's service, vacation will be determined from the most recent employment date.

Vacations must be taken within twelve (12) months after they are earned. For planning purposes, vacation requests require at least thirty (30) days prior notice for approval. Management will decide scheduling conflicts with consideration given to length of service. Then, at least thirty (30) days prior to vacation, you must request the days off via our payroll platform that will be sent to management for approval. Failure to request vacations days off via our payroll platform will result in a loss of pay for the vacation period until the Payroll Department receives such notice.

The Company has the right to identify "blackout periods" where vacation requests cannot be approved. For the Sales Department, the following "blackout periods" are the Friday after Thanksgiving (Black Friday) and the last two (2) weeks of December. Please be advised that vacations will not be approved for the periods above for any associate in the Sales Department i.e., General Manager, General Sales Manager, Sales Team Leader, Business Team Leader, BDC Team Leader and Product Specialist.

Vacations may not be accumulated. Split or partial vacations are not desirable. If you do not take your vacation, you will not be paid extra money. Vacations are for time off the job, not extra pay.

6.4 Holidays

Rohrman Automotive Group observes the following paid holidays:

- New Year's Day
- Memorial Day
- 4th of July
- Labor Day
- Thanksgiving Day
- Christmas Eve
- Christmas Day

The Company will grant paid holiday time off to all eligible employees. Holiday pay for regular full-time employees will be calculated based on the employee's base pay rate (as of the date of

the holiday) times the number of hours the employee would otherwise have worked on that day. Regular part-time employees will be paid on a pro-rata basis.

If an eligible non-exempt employee works on a recognized holiday with Company approval, he or she will receive holiday pay plus wages at his or her straight-time rate for the hours worked on the holiday.

To be eligible for holiday pay, employees must have completed their ninety-day (90-day) probation period and employees must work their regular schedule day before and after the holiday to receive pay.

6.5 Pregnancy-Disability Leave

Employees who are disabled on account of pregnancy, childbirth, or a related medical condition may request an unpaid leave of absence. Such leave will be granted for the period of disability, up to a maximum of four months. Time off may be requested for prenatal care, severe morning sickness, doctor-ordered bed rest, childbirth, and recovery from childbirth.

Leave provided for pregnancy disability is treated separately from leaves required by the state family and medical leave law. However, the first 12 workweeks of a pregnancy disability leave will be treated concurrently as a leave pursuant to the federal Family and Medical Leave Act ("FMLA") for all eligible employees.

Employees who wish to take a pregnancy disability leave must notify Human Resources of the date the leave is expected to commence and the estimated duration of the leave. Notice should be given as indicated above. The employee must also provide a medical certification of disability to the Company. Failure to provide the required medical certification to the Company in a timely manner will result in delay or denial of leave. Before returning to work, the employee must provide a medical certification that she is able to resume her original job duties. Appropriate forms may be obtained from Human Resources.

Employees who return to work immediately following the expiration of an approved pregnancy disability leave will generally be reemployed in their former position or a comparable job, as required by law.

Employees who are affected by pregnancy may also be eligible to transfer to a less strenuous or hazardous position or duties, provided certain prerequisites are met. Reasonable accommodations may be requested with the advice of the employee's health care provider. In addition, lactation accommodation is also available, upon request. For more information on pregnancy disability leave or transfer and its effect on the terms, conditions or benefits of employment, please contact Human Resources.

6.6 Family and Medical Leave

Eligible employees may request a family and medical leave of absence under the federal Family Medical Leave Act ("FMLA") in the circumstances described below. Eligible employees are

those who have been employed by the Company for at least 12 months (not necessarily consecutive), have worked at least 1,250 hours during the 12 months immediately prior to the family and medical leave of absence and are employed at a worksite where there are 50 or more employees of the Company within 75 miles.

Employees must request a planned family and medical leave at least 30 days before the leave begins. If the need for the leave is not foreseeable, employees must request the leave as soon as he or she becomes aware of the need for leave. Failure to comply with this requirement may result in a delay of the start of the leave.

A family and medical leave may be taken for the following reasons:

a. the birth of an employee's child or the placement of a child with the employee for foster care or adoption, so long as the leave is completed within 2 months of the birth or placement of the child;

b. the care of the employee's spouse or registered domestic partner, child, or parent with a "serious health condition";

c. the "serious health condition" of the employee;

d. because of any qualifying exigency arising out of the fact that the employee's spouse, child, or parent is on active duty or has been notified of an impending call or order to active duty, in the Armed Forces in support of a contingency operation; or

e. to care for a covered service member (who is the employee's spouse, child, parent or next of kin) with a serious illness or injury.

A "serious health condition" is one that requires inpatient care in a hospital or other medical care facility or continuing treatment or supervision by a health care provider. A "covered service member" is a member of the Armed Forces (including National Guard or Reserves) who is the employee's spouse, child, parent or next of kin, and is undergoing medical treatment, recuperation or therapy, is otherwise in outpatient status, or is otherwise on the temporary disability retired list, for a serious injury or illness incurred in the line of duty. A "serious illness or injury" is an injury or illness incurred in the line of duty while on active duty in the Armed Forces that may render the member medically unfit to perform the duties of the member's office, grade, rank or rating.

Medical Certification: When leave is requested for medical reasons, the employee must submit a medical certification from the health care provider that establishes the employee is eligible for family and medical leave. The certification must be provided as soon as is reasonably practical, and not later than the date leave begins or within 15 days of the Company's request, whichever is later. When the leave is requested because of the employee's own serious health condition, the certification must include: (1) the date the serious health condition commenced, (2) the probable duration of the serious health condition, and (3) a statement that, because of the serious health condition, the employee is unable to work or needs medical treatment.

When leave is requested to care for a family member who is ill or injured, the certification must contain: (1) verification the family member has a serious health condition or serious injury or illness, as defined above, and the date such condition began, (2) the probable duration of the condition, (3) an estimate of the amount of time the health care provider believes the employee will be needed to care for the family member or covered service member, and (4) a statement that the condition warrants the participation of the employee to provide care. The Company reserves the right to contact the health care provider to seek clarification of information in the certification, as needed, and may require recertification, as appropriate.

Before returning to work at the conclusion of a leave due to the employee's own serious health condition, the employee is required to provide a certification from his or her health care provider regarding the employee's fitness for duty. The employee must provide the required medical certification to the Company in a timely manner to avoid a delay or denial of leave.

Family and medical leave may be taken for up to 12 workweeks during the designated 12-month period for the purposes described in (a)-(d), above. The12-month period will be calculated based on a calendar year. Leave for the purpose described in (e), above (to care for a covered service member), may be taken for up to twenty-six (26) workweeks in a single 12-month period. During the single12-month period, an eligible employee shall be entitled to a combined total of 26 workweeks of leave for the reasons specified in paragraphs (a)-(d) and (e) above. In other words, any family and medical leave taken for reasons specified in paragraphs (a)-(d) above (up to 12 weeks), will be counted towards the total 26-week entitlement permitted for leave to care for a covered service member with a serious illness or injury during the single 12-month period. All time off that qualifies as family and medical leave will be counted against the employees federal and, if applicable, state family and medical leave entitlement to the fullest extent permitted by law.

During a family and medical leave, group benefits will be maintained for up to 12 workweeks (or up to 26 weeks when leave is for the purpose of caring for a covered service member), as if the employee was continuously employed.

If the employee does not return to work on the first workday following the expiration of an approved family and medical leave, the employee will be deemed to have resigned from his or her employment. Upon returning from such a leave the employee will normally be reinstated to his or her original or an equivalent position and will receive pay and benefits equivalent to those the employee received prior to the leave, as required by law. In certain circumstances, "key" employees may not be eligible for reinstatement following a family and medical leave. The Company will provide written notice to any "key" employee who is not eligible for reinstatement.

6.7 Workers' Compensation Leave

Any employee who is unable to work due to a work related injury or illness and who is eligible for Workers' Compensation benefits will be provided an unpaid leave for the period required.

The first 12 weeks will be treated concurrently as a family and medical leave under the federal Family Medical Leave Act ("FMLA") for employees eligible for FMLA leave.

6.8 Bereavement Leave

In the event of a death in the immediate family, employees may have up to three working days, with pay, at their regular straight time rate or base salary, to handle family affairs and attend the funeral. "Immediate family" is defined as: father, mother, brother, sister, spouse, domestic partner, child, mother-in-law, father-in- law, grandparents and grandchildren.

6.9 Jury Duty

U.S. citizens have a civic obligation to provide jury duty service when called. Employees are entitled up to three working days, with pay, at their regular straight time or base salary for jury duty.

The employee must bring in the jury duty notice as soon as it is received so that appropriate arrangements can be made to cover his or her duties. Employees are required to call in or report for work on those days or parts of days when their presence in court is not required.

6.10 Military Leave

Military leaves are available to eligible employees who enter the Uniformed Services of the United States, including the National Guard and the Commissioned Corps of the Public Health Service, or the state military forces, or the reserve components of the same, to participate in active or inactive duty or training. Time off is also permitted for an examination to determine one's fitness for duty in any of the federal military forces. Such leave will be granted in accordance with the Indiana state and federal laws, provided all legal requirements are satisfied and the employee returns to work or applies for reemployment within the time prescribed by law. The employee must provide advance notice of the need for leave whenever possible. The employee should give the employee's supervisor as much advance notice as possible to allow the Company to make arrangements to cover his or her position.

Employees on federal military leave may be entitled to continue health insurance benefits, at the employee's expense, for up to twenty-four months from the date of military departure.

6.11 Military Family Leave

Employees with a spouse or registered domestic partner serving in the United States Armed Forces, National Guard or Reserves, may take up to ten (10) days of unpaid leave when their spouse or domestic partner is on a leave from deployment during a military conflict. In order to be eligible for this leave, the employee must work an average of at least 20 hours per week and have a spouse or domestic partner who is either (1) a member of the United States Armed Forces deployed during a military conflict to a designated combat theatre or combat zone; or (2) a member of the National Guard who has been deployed during a period of military conflict; or (3) a member of the Military Reserves who has been deployed during a period of military conflict.

Eligible employees are required to notify the Company of their intention to take such leave within 2 days of receiving official notice that the spouse or domestic partner will be on a qualified leave and provide documentation certifying that the spouse or domestic partner will be on leave from deployment during the time the leave is requested.

At-Will Employment Agreement and Acknowledgement of Receipt of Employee Handbook

Employee: _____

I acknowledge that I have been provided with a copy of the Rohrman Automotive Group (the "Company") Employee Handbook, which contains important information on the Company's policies, procedures, and benefits, including the policies on Anti-Harassment/Discrimination, Substance Use and Abuse and Confidentiality. I understand that I am responsible for familiarizing myself with the policies in this handbook and agree to comply with all rules applicable to me.

I understand and agree that the policies described in the handbook are intended as a guide only and do not constitute a contract of employment. I specifically understand and agree that the employment relationship between the Company and me is at-will and can be terminated by the Company or me at any time, with or without cause or notice. Furthermore, the Company has the right to modify or alter my position or impose any form of discipline it deems appropriate at any time. Nothing in this handbook is intended to modify the Company's policy of at-will employment. The at-will employment relationship may not be modified except by a specific written agreement signed by me and an authorized representative of the Company. This is the entire agreement between the Company and me regarding this subject. All prior or contemporaneous inconsistent agreements are superseded.

I understand that the Company reserves the right to make changes to its policies, procedures, or benefits at any time at its discretion. However, the at-will employment agreement can be modified only in the manner specified above. I further understand that the Company reserves the right to interpret its policies or to vary its procedures as it deems necessary or appropriate.

I have received the Company Employee Handbook. I have read (or will read) and agree to abide by the policies and procedures contained in the Handbook.

By: _____ Date: _____

By: _____ Date: _____